**IN THE NATIONAL COMPANY LAW TRIBUNAL, AHMEDABAD**
**COURT - 2**

ITEM No228

**CP(CAA)/15(AHM)2022**
**in**
**CA(CAA)/2(AHM)2021**

**Proceedings under Section 230-232 r.w 66 of Co.act,2013**

**IN THE MATTER OF:**

Dayanidhi Real Estate Pvt Ltd **.....Applicant**
Ganesh Infoline Pvt Ltd
Ramdev Vyapaar Pvt Ltd
Anubha Fabrics Pvt Ltd

**Order delivered on 28/07/2022**

**Coram:**

Dr.Deepti Mukesh, Hon'ble Member(J)
Ajai Das Mehrotra, Hon'ble Member(T)

**PRESENT:**

For the Applicant : Advocate, Mr. Pavan Godiawala a/w
Advocate, Ms. Anushri Soni.

**ORDER**

Second motion petitioner filed by the Applicants for admission of the petition. The learned counsel for the Applicant states that first motion application was allowed vide order dated 20.01.2022. Thereafter, second motion was filed on 11.03.2022 much belatedly. Hence, IA 26 of 2022 for condonation of delay was filed, which was rejected vide order dated 23.03.2022. The said order was impugned before the Hon'ble NCLAT and vide order dated 15.07.2022 appeal was allowed condoning the delay, subject to payment of Rs. 11,000/- before learned Registrar of the Appellate Tribunal within two weeks. The learned counsel states that the proof of payment is not annexed and undertakes to upload and file the same within two days. The learned counsel further states that while dismissing the application for condonation of delay, the second motion which was already filed was not disposed of. Hence, this petition may be admitted.

The learned counsel, Mr. Godiawala states that statement may be recorded that the proof will be placed on record within two days.

The Petitioner has served Notice(s) to Statutory Authorities and also filed affidavit evidencing service to concerned Authorities.

The petition is admitted.

The Petitioner shall advertise Notice of hearing of this petition in “Financial Express” in English and Gujarati/vernacular language in Newspaper having circulation in Gujarat, not less than ten days before fixed date of hearing, calling for objections, if any, on or before the date of hearing.

The Petitioner shall issue notice(s) to following, informing the date of hearing:

1. **Regional Director and the Registrar of Companies** both situated at *RoC* Bhavan, Opp. Rupal Park Society, Behind Ankur Bus Stop, Naranapura, Ahmedabad (380013)**.**
2. **The Official Liquidator** situated at 3rd Floor, Corporate Bhawan, B/H Zydus Hospital, Thaltej, Ahmedabad-380059 Gujarat.
3. **The Income Tax Department** at respective ward officers with details of PAN of all Petitioners Companies and also Office of Principal Chief Commissioner Income Tax, at their present address.

List for hearing on 22.09.2022

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**AJAI DAS MEHROTRA**
**MEMBER (TECHNICAL)**

**DR. DEEPTI MUKESH**
**MEMBER (JUDICIAL)**

Abhishek